



Republic of the Philippines
DEPARTMENT OF TRANSPORTATION

DEPARTMENT ORDER NO. 2023-007

Subject : **DELEGATION AND DELINEATION OF AUTHORITIES IN
THE DOTr CENTRAL OFFICE AND ITS SECTORAL
PROJECT MANAGEMENT OFFICES (PMOs)**

Date : **28 FEB 2023**

1.0 Purpose

In order to ensure an efficient and effective flow of operations, harmonize responsibilities, and enhance work efficiency in the Department, this Order on the delegation/delineation of functions and authorities is hereby prescribed.

2.0 Scope and Limitations

This Department Order shall cover the DOTr Central Office and its sectoral PMOs.

The MRT-3 PMO, the DOTr Regional Offices in Cordillera Autonomous Region (CAR) and CARAGA, the DOTr Sectoral Offices, including Land Transportation Office (LTO), Land Transportation Franchising and Regulatory Board (LTFRB) and Philippine Railways Institute (PRI) are authorized to issue their respective internal policies with respect to delineation of functions and authorities **except** on the following:

1. All procurement processes for Programs, Activities, and Projects (PAPs):
 - a. For MRT3 Office and PRI, regardless of amount; and
 - b. For LTO, LTFRB, and DOTr Regional Offices in CAR and CARAGA, where the Approved Budget for the Contract (ABC) is above Fifty Million Pesos (Php 50,000,000.00);
2. All disbursement for any amount above Fifty Million Pesos (Php 50,000,000.00), regardless of operating unit under the General Appropriation Act (GAA) for which the SOTr's approval shall be required; and
3. Any other item for which the approving authority is specifically provided for in this Department Order for the foregoing offices.

3.0 Delegation and Delineation

The succeeding transactions shall be approved by the following officials, taking into consideration the necessary recommendation and completed staff work as prescribed under Office Order No. 2022-006:

NATURE OF TRANSACTION	APPROVING AUTHORITY
I. OPERATIONAL PLANNING	
1. Transmittal of projects needing approval of the NEDA Board including Cabinet Committees and Technical Boards <i>Also includes:</i> - Initial submission and/or endorsement of projects to NEDA Board for approval, restructuring and/or re-approval - Grant of Original Proponent Status	SOTr
2. Conceptual Plans, Master Plans, Feasibility Studies, Environmental Impact Statement for Critical Projects	USEC Concerned
3. Detailed Engineering and any revisions made thereof <i>Includes:</i> - Detailed Design - Technical Specifications - Cost Estimates - Program of Work - Proposed Construction Schedule and estimated Cash Flow for Projects over 6 months - PERT/CPM Network/S-Curve and Cash Flow (without Extension of Time in the original contract duration) - Site or Right of Way Plans including the Schedule of Acquisition, Utility Relocation Plans, Construction Safety and Health Programs - Bid and Transfer Documents	USEC Concerned
II. PROCUREMENT MATTERS	
1. Annual Procurement Plan (APP)/ Supplemental Annual Procurement Plan	Designated HoPE
2. Contracts recommended by the Bids and Awards Committee (BAC) including Amendments/ Rescission/ Termination	
3. Approval and Cancellation/Termination of Purchase Order (PO)	
4. Notice to Proceed (NTP)	
5. Certificate of Compliance to Executive Order (EO) No. 423	

NATURE OF TRANSACTION		APPROVING AUTHORITY
III. PROJECT/CONTRACT IMPLEMENTATION		
1.	As-staked/ As-built plans for Infrastructure Projects	USEC Concerned
2.	Certificates of Payment, including Interim Payment Certificates	USEC Concerned SOTr
2.1	Php50 Million and below	
2.2	Above Php50 Million	
3.	Variation Order and/or Amendment to Order such as Change Order, Extra Work Order	Designated HoPE
4.	Orders for Time Extension, Suspension and Resumption	USEC Concerned
5.	Contract Price Escalation/ Price Adjustment/ Other Contractual Claims as approved by GPPB	
6.	Liquidated Damages	
7.	Certificate of Project Completion, Statement of Performance and Statement of Work Accomplished, Certificate of Acceptance and Certificate of Project Turn-over	USEC Concerned Director – Management Information Service Director Concerned (or Next Higher Official) USEC Concerned
7.1	Infrastructure projects, including goods and services related to the projects	
7.2	Goods and Services for DOTr –Central Office, not attributable to a specific project	
7.2.1	IT contracts, Equipment and Supplies	
7.2.2	Other Goods and Services	
7.3	Consulting Services	
8.	Replacement of Contractor's and/or Consultant's key technical and administrative personnel	
9.	Letter of Indorsement to the Bureau of Customs (BOC) including Certificate of Undertaking and Special Power of Attorney	USEC Concerned
10.	Right-of-way and Site Acquisition (ROWSA) matters	
10.1	Appraisal Report for valuation of properties	
10.2	Notice of Taking and Request to Donate and/or Offer to Buy/Compensate	

NATURE OF TRANSACTION	APPROVING AUTHORITY
10.3 Agreement to Demolish and Remove Improvements/ Memorandum of Agreement for lot and/or structures and improvement payment with encumbrance (lifting); 10.4 Deed of Donation or Absolute Sale; 10.5 Right-of-Way Usage Agreement and/or Usufruct Agreement; 10.6 Documents needed for the Acquisition of Subsurface Right-of-way Easement of ROW-Subterranean (under Sec.11 (a), IRR of RA10752); and 10.7 Compromise Agreement (for pending Expropriation cases) i. Up to Php50 Million ii. Above Php50 Million	USEC concerned SOTr
IV. ADMINISTRATIVE MATTERS	
A. Personnel Concerns	
1. Daily Time Record, Certificate of Service (3 rd level positions) and Accomplishment Report	Immediate Supervisor (<i>Division Chief Level or higher</i>)
2. Authority to Engage Job Order and Contract of Service Workers	USEC-Administration and Finance
3. Appointments and/or Contracts, including Renewal, Notice of Termination, Expiration of Contracts, Acceptance of Resignation and Dropping from the Rolls 3.1 For Plantilla Appointments (<i>1st and 2nd Level</i>) 3.1.1 DOTr Central Office 3.1.2 LTO/LTFRB (<i>Positions with SG-22 and above</i>) 3.1.3 MRT-3 (<i>Positions with SG-22 and above</i>) 3.2 Casual/Contractual Appointments	USEC-Administration and Finance
3.3 Job Order and Contract of Service	Director - Administrative Service
4. Authority to Transfer 5. Recall/Reassignment/Detail/Designation of Officer-In-Charge as per issued Special Order 6. Authority to Practice Profession/Permit to Teach i. For 3rd Level Positions including Heads of Agency ii. For 1st and 2nd Level Positions	SOTr USEC-Administration and Finance

NATURE OF TRANSACTION	APPROVING AUTHORITY
7. Notices of Salary Adjustment and/or Step Increment 7.1 From Director up to Undersecretary 7.2 Undersecretary for Administration and Finance 7.3 1st and 2nd Level Positions	USEC- Administration and Finance SOTr ASEC- Administration and Procurement
8. Leave Applications 8.1 Undersecretaries, Assistant Secretaries and Heads of Agencies 8.2 All personnel up to Service Directors	SOTr USEC Concerned <i>Upon the recommendation of the Immediate Supervisor</i>
9. Terminal Leave 9.1 Undersecretary for Administration and Finance 9.2 All Personnel including Heads of Agency except for the Undersecretary for Administration and Finance	SOTr USEC- Administration and Finance <i>Upon the recommendation of the ASEC- Administration and Procurement</i>
10. Monetization of Leave Credits 10.1 Monetization of more than 30 days or for 50% - 80% of accumulated leave 10.2 Monetization of 10-30 days of vacation or other leave credits as may be authorized	SOTr USEC- Administration and Finance

NATURE OF TRANSACTION	APPROVING AUTHORITY
11. Authority to Render Overtime Service-for Compensatory Time-Off and/or Overtime Pay 11.1. OSEC personnel 11.2. All other personnel <i>Note: Overtime Pay is subject to timely submission of authority to render and availability of funds/budget</i>	HEA/Chief-of-Staff USEC Concerned
12. Approval of Office Clearance 12.1 Undersecretaries and Heads of Agency 12.2 Secretary, Assistant Secretaries, Directors including Directors and Assistant Directors of Regional Offices 12.3 1st and 2nd Level Positions	SOTr USEC- Administration and Finance ASEC- Administration and Procurement
13. Statement of Assets, Liabilities, and Net Worth (SALN)	Head of Service/ Office Concerned (<i>Person Authorized to Administer Oath</i>)
B. Travel	
1. Issuance of Travel Authority 1.1 Foreign Travel – Official and Non-Official 1.1.1 Undersecretaries and Heads of Agency 1.1.2 Secretary, Assistant Secretaries, Directors including Directors and Assistant Directors of Regional Offices 1.1.3 1st and 2nd Level Positions 1.1.4 Personnel under the Head of Agency of Sectoral/Regional Offices/MRT3/PRI <i>*Upon the recommendation of the Head of Office/Service</i>	SOTr USEC- Administration and Finance* ASEC- Administration and Procurement* Head of Agency/Executive Director/General Manager
1.2 Local Travel including attendance to training	USEC Concerned

NATURE OF TRANSACTION	APPROVING AUTHORITY
C. Trainings, Scholarships and Seminars	
1. Approval of Training Programs 1.1 Annual Learning and Development (L&D) Plan (including Local Trainings and Non-Study Programs which are not initially included in the L&D Plan) 1.2 Gender and Development (GAD) Plans, Activities and Programs (PAPs)	USEC- Administration and Finance <i>(Upon the recommendation of the General Manager in the case of MRT3)</i> Executive Director (in the case of PRI) GAD Focal Point System
1.3 Nomination and attendance to local and foreign scholarships, and study programs 1.3.1 DOTr Central Office (including the Head of Agency of the Sectoral, Regional and PMOs Office) 1.3.2 PRI and MRT3	USEC- Administration and Finance <i>As recommended by the Personnel Development Committee</i> <i>As recommended by the Executive Director/ General Manager</i>
2. Scholarship and Study Program Contracts	Chairperson- Personnel Development Committee
D. Equipment and Property	
1. Assignment of Service Vehicle	USEC- Administration and Finance
2. Property Acknowledgment Receipt (PAR)	Director- Administrative Service

NATURE OF TRANSACTION		APPROVING AUTHORITY
3.	Signing of Invoice Receipt for Property (IRP), Property Transfer Report (PTR) and Inventory Transfer Report (ITR)	USEC- Administration and Finance Director - Administrative Service
3.1	Completed Infrastructure Projects/Civil Works for ports, airports, buildings including equipment and other related facilities	
3.2	Turn-over of Property, Plant and Equipment (PPE) and other equipment from completed projects	
4.	Disposal of Unserviceable Motor Vehicles and Other Properties	USEC- Administration and Finance
5.	Donation of DOTr Property/ Equipment to other agencies, institutions, and LGU	
6.	Contract of Sale/Deed of Sale related to Disposal of Properties	
7.	Lease of DOTr properties 7.1 For Public Purpose through a Memorandum of Agreement (MOA) 7.2 For Private Purpose through Lease Contract	
V. LEGAL MATTERS		
1.	Issuance/Signing of Answers, Complaints, Verification, Certificate of Non-Forum Shopping, Comments, Motions, Position Papers, aide memoire, issuances affecting the Department, its Sectoral Offices and Attached Agencies and Pleadings, on cases pending before Judicial, Quasi-Judicial, and Administrative Bodies, including Special Power of Attorney for Pre-Trial/ Mediation.	USEC - Legal Affairs
2.	Promulgation/confirmation of decision, resolution, order and other dispositions, issuances in Administrative complaint or cases	
3.	Issuance of Memorandum to Explain/Show-Cause Order in disciplinary cases	
4.	Issuance of Preventive Suspension in Administrative Disciplinary Cases in the DOTr-Central Office	
5.	Signing of Formal Charges	
6.	Signing of Verification, Certificate of Non-Forum Shopping, and Special Power of Attorney for expropriation/ROWSA cases. (as reviewed by Legal)	USEC Concerned

The succeeding transactions/reports shall be approved subject to the recommendation of the following officials:

NATURE OF TRANSACTION	RECOMMENDING AUTHORITY	APPROVING AUTHORITY
VI. FISCAL MATTERS		
1. Authority to Hold Cash Advance	USEC Concerned	USEC-Administration and Finance
2. Sub-allotment Release Order (SubARO)	-	
3. Letter Advice of Allotment Released (LAAR)	USEC Concerned	USEC-Administration and Finance
4. Obligation Request and Status (ORS)	Head of Requesting Office	Division Chief-Budget Division
5. Modification Advice Form (MAF) and Advice for Use of PS Allotment (APSA)	Director-FMS	USEC-Administration and Finance
6. Financial Accountability Reports (FAR)	Director-FMS and Director-Comptrollership Service	USEC-Administration and Finance
7. Statement of Allotment, Obligation, and Balances (SAOB)	Director-FMS	USEC-Administration and Finance
8. Remittances of Income Collection to the Bureau of Treasury	Division Chief-Treasury Division	Director-Comptrollership Service
9. Advice of Checks Issued and Cancellation (ACIC)		
10. Tax Remittance Advice		

Disbursement vouchers for the following transactions shall be certified and approved by the following officials:

NATURE OF TRANSACTIONS	BOX A	BOX D
	certification of Authorized Official that the expenses/ cash advances are necessary, lawful and incurred under his direct supervision	Approval of the head of the Agency or Authorized Official on the payment covered by the DV
1. Cash Advance (including liquidation)	Director Concerned (or Next Higher Official)	USEC-Administration and Finance
2. Salaries and other benefits for organic Personnel	Director-Administrative Service	ASEC-Finance and Comptrollership

NATURE OF TRANSACTIONS	BOX A	BOX D
	certification of Authorized Official that the expenses/ cash advances are necessary, lawful and incurred under his direct supervision	Approval of the head of the Agency or Authorized Official on the payment covered by the DV
3. Wages of Job Order/Contract of Service (COS) personnel	Director Concerned (or Next Higher Official)	ASEC-Finance and Comptrollership
4. Extraordinary and Miscellaneous Expenses (EME)		
5. Payment of Compensation for Independent Consultants and Highly Technical Consultants for procured services	USEC Concerned	USEC-Administration and Finance*
6. Remittances to GSIS, Pag-IBIG, PhilHealth, BIR, etc.	Chief, Treasury Division	Director-Comptrollership Service
7. Payment of Honoraria	BAC Chairperson ASEC Concerned	HOPE ASEC-Finance and Comptrollership
i. BAC and TWG Members		
ii. Resource Persons		
8. Payment for Renewal of Motor Vehicle Registration, GSIS Insurance,	Director Concerned (or Next Higher Official)	ASEC-Finance and Comptrollership
9. Payment for Fidelity Bond	Director-Comptrollership Service	ASEC-Finance and Comptrollership
10. Payment for Non-Infra related matters such as MOOE and Regular Equipment Outlay	Director Concerned (or Next Higher Official)	ASEC-Finance and Comptrollership
11. Infrastructure Related Matters	USEC Concerned USEC Concerned	USEC-Administration and Finance SOTr
i. Payment for Site Acquisition and Right-of-Way Activities including expenses related to transfer of title to DOTr		
Up to Php 50 million		
Above Php 50 million		

For all items marked with asterisk (*), the Assistant Secretary for Finance and Comptrollership (AFC) shall sign for disbursements related to contracts approved by the Undersecretary for Administration and Finance (UAF) as DOTr's designated Head of the Procuring Entity (HoPE).

NATURE OF TRANSACTIONS	BOX A	BOX D
	certification of Authorized Official that the expenses/ cash advances are necessary, lawful and incurred under his direct supervision	Approval of the head of the Agency or Authorized Official on the payment covered by the DV
ii. Advance payment, First Billing/ Progress Billing, Release of Retention Money, whether for goods, consulting services or civil works Up to Php 50 million Above Php 50 million	 USEC Concerned USEC Concerned	 USEC- Administration and Finance* SOTr
iii. Disbursements of GOP counterpart funds for Foreign-Assisted Projects (FAPs) Up to Php 50 million Above Php 50 million	 USEC Concerned USEC Concerned	 USEC- Administration and Finance* SOTr
12. Fund Transfer to Implementing Agencies, LGUs and other government offices i. Up to Php50 Million ii. Above Php50 Million	 USEC Concerned USEC Concerned	 USEC- Administration and Finance SOTr
13. Travel Expenses i. 3 rd Level Positions	 ASEC Concerned	 USEC- Administration and Finance

For all items marked with asterisk (*), the Assistant Secretary for Finance and Comptrollership (AFC) shall sign for disbursements related to contracts approved by the Undersecretary for Administration and Finance (UAF) as DOTr's designated Head of the Procuring Entity (HoPE).

NATURE OF TRANSACTIONS	BOX A	BOX D
	certification of Authorized Official that the expenses/ cash advances are necessary, lawful and incurred under his direct supervision	Approval of the head of the Agency or Authorized Official on the payment covered by the DV
ii. 1 st & 2 nd Level Positions	Director Concerned (or Next Higher Official)	ASEC-Finance and Comptrollership
iii. Travel Expenses and Special Counsel Allowance of Office of the Solicitor General (OSG) and DOTr lawyers representing the Department in Court Hearings	Director (Legal)	ASEC-Finance and Comptrollership
iv. Travel expenses relative to procurement activities (e.g., conduct of post qualification and other BAC-related activities)	BAC Chairperson	ASEC-Finance and Comptrollership
14. Reimbursement or payment of registration fees for training or workshops	Director Concerned (or Next Higher Official)	ASEC-Finance and Comptrollership

The documents for availment/disbursement of loan proceeds for FAPs shall be approved by the following officials:

NATURE OF TRANSACTION	APPROVING AUTHORITY
Disbursement Documents for FAPs, including Request for Disbursement, Transfer Instruction, Summary Sheet of Payments, Withdrawal Application, or similar forms required by the lender	
i. Up to Php50 Million	USEC- Administration and Finance*
ii. Above Php50 Million	SOTr

For all items marked with asterisk (*) , the Assistant Secretary for Finance and Comptrollership (AFC) shall sign for disbursements related to contracts approved by the Undersecretary for Administration and Finance (UAF) as DOTr's designated Head of the Procuring Entity (HoPE).

Checks and Advices to Debit Account (ADA) shall be signed and countersigned by the following officials:

NATURE OF TRANSACTION	SIGNING	COUNTERSIGNING
Signing and Countersigning of Checks/Advices to Debit Account (ADA)		
1. Up to Php15 Million	Division Chief-Treasury Division	Director-Comptrollership Service
2. Up to Php50 Million	Director-Comptrollership Service	ASEC-Finance and Comptrollership
3. Regardless of amount	ASEC-Finance and Comptrollership	USEC- Administration and Finance

Transactions and functions exercised not found herein but previously reflected in Orders on this subject matter shall be approved/signed by the Secretary.

4.0 Signing Authority in Case of Absences

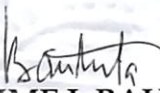
Designated Officers-In-Charge shall sign in the absence of the authorized signatory provided herein.

5.0 Review Requirement for All Contracts

A Certificate of Availability of Funds (CAF) must be secured prior to the approval of contracts requiring budgetary allocation or funding. A Legal Pass (LP) must also be secured prior to the approval of contracts.

6.0 Effectivity

This Office Order shall take effect immediately. Department Order No. 2021-012 and all other issuances inconsistent herewith are deemed amended, revoked, or superseded.


JAIME J. BAUTISTA
 Secretary 

